

26CV01663 Martin Garcia, Jr et al vs Alta Orthopaedic Medical Group

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-14

Motion: Motion: Consolidation

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Tentative Ruling: Martin Garcia, Jr et al vs Alta Orthopaedic Medical Group

Case Number

26CV01663

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/14/2026 - 10:00

Nature of Proceedings

Motion: Consolidation

Tentative Ruling

For all reasons discussed herein, the hearing on the motion of plaintiffs for consolidation and appointment of interim co-lead class counsel is continued to October 16, 2026, at 10:00 a.m. in this department. Plaintiffs shall comply with California Rules of Court, rule 3.350, as described below, no later than September 4, 2026. Attorneys that are not licensed to practice law in California shall not make any appearances until, and unless, they are admitted pro hac vice in their respective cases.

Background:

The class action cases at issue in this motion all arise from allegations that a cybercriminal group, Inc. Ransom, breached defendant's computer system in March 2026, and obtained a vast amount of personally identifying information and protected health information regarding past and current patients of defendant. The plaintiffs allege that defendant breached a duty to implement and keep in place adequate data security measures and practices to protect against unauthorized access and disclosure of sensitive information.

Arguing that the cases all involve common questions of law and fact, plaintiffs Martín García, Jr., Susan French, Darryl Genis, Mary-Ellen Kimbrell, LeeAnne Studdard, Andrew Raaf, Stephanie Wiley, and Daniel Kirkland move for consolidation and appointment of interim co-lead counsel. While there is no opposition to the request to consolidate, plaintiff Suzan Kirkland opposes the appointment of four interim co-lead counsel or, in the alternative, requests that her attorneys be appointed co-lead counsel.

On June 12, 2026, defendant filed a notice of non-opposition to the motion.

Analysis:

“When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048, subd. (a).)

“Consolidation under section 1048 is permissive, and the trial court granting consolidation must determine whether the consolidation will be for all purposes or will be limited.” (Committee for Responsible Planning v. City of Indian Wells (1990) 225 Cal.App.3d 191, 196, fn. 5.)

“Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment.” (Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1147.) “Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only.” (Id. at p. 1149.)

California Rules of Court, rule 3.350 provides:

“(a) Requirements of motion

“(1) A notice of motion to consolidate must:

“(A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;

“(B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and

“(C) Be filed in each case sought to be consolidated.

“(2) The motion to consolidate:

“(A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;

“(B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and

“(C) Must have a proof of service filed as part of the motion.

“(b) Lead case

Unless otherwise provided in the order granting the motion to consolidate, the lowest numbered case in the consolidated case is the lead case.

“(c) Order

An order granting or denying all or part of a motion to consolidate must be filed in each case sought to be consolidated. If the motion is granted for all purposes including trial, any subsequent document must be filed only in the lead case.

“(d) Caption and case number

All documents filed in the consolidated case must include the caption and case number of the lead case, followed by the case numbers of all of the other consolidated cases.”

The motion does not comply with the procedural requirements of California Rules of Court, rule 3.350 in the following respects: (1) The motion was not filed in each case to be consolidated; and (2) There is no proof of service filed showing that all attorneys of record and all nonrepresented parties in all of the cases have been served. The “Certificate of Service” attached to the end of the motion is not the same as a proof of service of the actual documents. Proof of service must comply with Code of Civil Procedure sections 1013, et seq.

The matter will be continued to allow the moving plaintiffs to comply with the procedural requirements.

The court also notes that there are at least two attorneys that have appeared, by signing filed documents, that are not authorized to practice law in the State of California. Stating “pro hac vice forthcoming” is insufficient. The out-of-state attorneys will promptly apply, pursuant to California Rules of Court, rule 9.40, to appear pro hac vice, and pay the required fees, and they shall not make any appearances in this court until and unless the applications are granted

Judges

Judge Donna D. Geck

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